

SENATE No. 2867

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 29, 2025.

The committee on Education to whom was referred the petition (accompanied by bill, Senate, No. 422) of Patrick M. O'Connor for legislation to relate to seizure disorders in schools, report the accompanying bill (Senate, No. 2867).

For the committee,
Jason M. Lewis

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An Act relating to seizure disorders in schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 53B of Chapter 71 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by adding the following paragraph:-

3 A school nurse in collaboration with a student's parents or guardians, shall create an
4 individualized seizure action plan for each student enrolled in the school district who has an
5 active seizure disorder diagnosis. An individualized seizure action plan shall acknowledge and
6 prepare for the health care needs of a student diagnosed with a seizure disorder; provided that the
7 department of public health may issue guidelines for the development and content of seizure
8 action plans. As part of the seizure action plan, the school nurse or other school personnel may
9 agree to possess and be trained in the administration of a rescue seizure medication with
10 agreement from parents. The individualized seizure action plan shall be kept on file in the office
11 of the school nurse or school administrator and shall be distributed to any school personnel or
12 volunteers responsible for the supervision or care of the student.